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NC Department of Adult Correction
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REHABILITATION

Roy Cooper, Governor | Todd Ishee, Secretary

TO: **All Central Engineering Staff**
FROM: **Jeffrey O'Briant, PE, PLS Director** JO 4/28/2023 | 16:25:43 EDT
DATE: **15 NOV 2018**
REV: **28 APR 2023**

SUBJ: **HUB Partnership and Inclusion Policy**
Solicitation Actions for Construction Contracts

Policy:
For every construction contract anticipated to bid over $5000, Central Engineering staff developing, administering bids, or managing construction contracts shall:

- Actively seek and solicit potential HUB vendors for construction services. If, in the course of solicitation for construction services, there are no known HUB providers for that service; seek to find no less than one HUB firm to add as a service provider or document that none are available and qualified in the industry.

- Identify, refer, and encourage non-registered HUB vendors to contact the HUB Office for registration.

- Utilize a 28 day bid period spanning from the date of public release to the date of bid opening.

- Directly solicit a minimum 30% registered HUB vendor participation on every informally bid contract.
  - Obtain input from the HUB Office (reference e-mail notification below)
  - Obtain input from others in Central Engineering to include CAP.
  - Search for vendors under HUB Vendor Search: https://www.ips.state.nc.us/vendor/searchvendor.aspx?t=h

- Notify the HUB Office at least 28 days in advance of publicly releasing a contract for bid, requesting input on possible HUB vendors. Include the following in e-mail:
  - Project description and location
  - Anticipated date, time, and location of the pre-bid meeting.
  - Anticipated date, time, and location of the bid opening.
  - Request a list of potential HUB Vendors who may be suitable for the intended work (informally bid contracts only). Referrals from the HUB Office should be given strong consideration for inclusion in bid solicitation efforts.

MAILING ADDRESS:
4216 Mail Service Center
Raleigh, NC 27699-4216

OFFICE LOCATION:
2020 Yonkers Road
Raleigh, NC 27604

An Equal Opportunity Employer

FROM THE OFFICE OF:

Central Engineering
Telephone: 919.716.3400

https://dac.nc.gov

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- Notification/request shall be e-mailed to: See Contract Routing Directory in DL (300.401)

- Incorporate into the bid documents, via instruction to bidders and Central Engineering Special Conditions, the following language:

  NCDAC requires that, for construction contracts with a value of $5000 or greater, the contractor shall comply with the document *Guidelines for Recruitment and Selection of Minority Businesses for Participation in State Construction Contracts* including Identification of Minority Business Participation, *Affidavits A, B, C, and D,* and *Appendix E*. These forms provided herein are hereby incorporated and made a part of this contract. A bidder's failing to comply with this requirement will be considered non-responsive and will result in bid rejection.
  The NCDAC imposed contract threshold of $5000 for HUB recruitment supersedes any reference to a higher threshold that may be noted in the bid documents, within referenced documents, or within any regulatory requirement.

- Incorporate into the bid documents, the *Guidelines for Recruitment and Selection of Minority Businesses for Participation in State Construction Contracts* including Identification of Minority Business Participation, Affidavits A, B, C, and D, and Appendix E.

- For Informally bid contracts, identify all solicited bidders on the bid tabulation. This includes phone, e-mail, and verbal notification even if they do not submit a bid. In the alternative, a bid solicitation log may be appended to the bid tab.

- For Formally bid contracts, identify only those bidders who submitted a bid on the bid tabulation.

- Suspend use of the NCDAC HUB Questionnaire that has traditionally accompanied informally bid contracts. The use of *Identification of Minority Business Participation, Affidavits A* and *B*, will replace the questionnaire.

In addition to the above, for every Construction Contract anticipated to bid over $30,000, Central Engineering staff developing, administering bids, or managing construction contracts shall:

- Conduct a mandatory pre-bid meeting.

- Provide plans and specifications to the plan rooms identified in the State Construction Manual Section 603 A 5 (b, c, d, & e) as appropriate based upon project location.

- Post the Notice to Bidders in the Interactive Purchase System. Notice to Bidders must include the Contract Administrator's Name, e-mail, and phone number. Submit the Notice to Bidders to scoads@doa.nc.gov . SCO will post the Notice to Bidders in the IPS Directory. The IPS directory for Construction Projects is located at: https://www.ips.state.nc.us/IPS/CatBids.aspx , scroll down to Construction Services.

- Complete the HUB Bid Opportunity data located at: https://ncadmin.nc.gov/businesses/historically-underutilized-businesses-hub/submit-contractor-bid-opportunity-hub

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- Post an outreach advertisement referencing the IPS Notice to Bidders in at least one HUB media outlet in the project vicinity (e.g., newspaper). Utilize the HUB Media Advertisement form and submit that to the NCDAC Central Engineering HUB Coordinator.

In addition to the above, for projects that do not exceed $250,000 compliance with Executive Order 143 is required - *all projects to include at least one bid or proposal from a certified small historically underutilized business. Exceptions to this rule must be approved by the Secretary of the Department of Administration or her designee*.

- Contract Administrators to e-mail Manager of Project Management Certified Bid Tab, HUB Reporting and HUB Solicitation forms.
- Manager of Project Management to submit the bid solicitation documentation into InterSCOPE+

Roles and Expectations:

Any Central Engineering staff member placing contract for bid or intending to award a contract is defined as the Contract Administrator. Contract Administrators include, but are not limited to:

- Project Managers
- Regional Engineers
- Designers (functioning as PM)
- CAP Estimators
- CAP Trade Managers
- CAP Operations Managers

The Contract Administrator is solely responsible for ensuring compliance with this policy to include:

- Conformance of HUB solicitation and reporting language within bid documents prior to bid
- Solicitation efforts
- Preparation of advertisements
- Placement of advertisements in IPS
- Completion of HUB Opportunity data on HUB website
- Placement of plans in HUB-focused plan rooms
- Filing of all HUB related documents and correspondence in the I-drive project folder

The HUB Coordinator will assist with advertisement placement in external HUB-focused media sources.

Supporting Material:

1) *HUB Solicitation Checklist and Advertisement.xlsx* – A checklist and calculator to identify requirements for advertisement and HUB-focused plan rooms. The file also pre-populates an advertisement for external HUB-focused media sources.
2) *HUB Front End Package.pdf* – A document that combines SCO HUB related documents in one location. This 14 page document is to be placed in all contracts over $5000.
3) *Guidelines for Recruitment and Selection of Minority Businesses for Participation in State Construction Contracts* - https://files.nc.gov/ncdoa/documents/files/MBGuidelines2002R.pdf This document includes instructions to bidders on soliciting and documenting HUB compliance.
4) *Minority Business Participation Form* - https://files.nc.gov/ncdoa/documents/files/MB_Participation_Forms_7-22-2010.doc This document includes, *Affidavits A, B, C, and D,* and *Appendix E*.
5) *Bid Tab Template.xlsx* – A standard bid tab used by Central Engineering. This document includes fields to identify HUB certification status of each bidder.
6) *E-mail Language 28-Day HUB Office Notice* – Sample Language for the 28-day e-mail notice to the HUB office requesting recommended vendors.